

ITEM WISE EDITORIAL ... 9th July, 2019



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CASE FOR SEPARATE LAW FOR CRIMES AGAINST HUMANITY



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EDITORIALS

... DISCUSSION

9th JULY, 2019

Crimes that India's statute books have failed to define

No law adequately deals with mass atrocities

VLADIMIR REZAK

Neither 'crimes against humanity' nor 'genocide' has been made part of India's criminal law, a lacuna that needs to be addressed urgently. This was the lesson of Justice S. Narasimha of the Delhi High Court, while pronouncing the judgment in *State v. Sajjan Kumar* (2018).

The case concerned the mass killing of Sikhs during the anti-Sikh riots in 1984 in Delhi – and throughout the country. The court categorically stated that these kind of mass crimes "engineered by political actors with the assistance of the law enforcement agencies" fit into the category of crimes against humanity (CAH).

Internationally, CAH are dealt with under the Rome Statute of the International Criminal Court (ICC). They are defined as offences such as murder, extermination, enslavement, deportation, sexual violence, imprisonment and rape committed as a part of "widespread or systematic attack directed against any civilian population, with knowledge of the attack".

India is not a party to the Rome Statute, which means that it is under no obligation at present to enact a separate legislation dealing with CAH. Even after ratification of the Genocide Convention (1948), India has not enacted it in domestic legislation.

Reasons for reluctance

The most probable reason for India's reluctance to actively participate in the negotiation process on a separate Convention on CAH, which started in 2005, could be the adoption of the same definition of CAH as provided in the Rome Statute. The Indian representatives at the International Law Commission (ILC) have stated that the draft articles should not conflict with or duplicate the existing treaty regimes.

India had objected to the definition of CAH during negotiations of the Rome Statute on these grounds.

First, India was not in favour of using "widespread or systematic" as one of the conditions, preferring "widespread and systematic", which would require a higher threshold of proof.

Second, India wanted a distinction to be made between international and internal armed conflicts. This was probably because its internal conflicts with rebels and other non-state actors in places like Kashmir and the Northeast could fall under the scope of CAH.

The third objection related to the inclusion of enforced disappearance of persons under CAH. It is pertinent here that India has signed but not yet ratified the UN International Convention for the Protection of All Persons from Enforced Disappearances as it would put the country under an obligation to criminalise it through domestic legislation.

Can these objections be seen as providing the basis for India's objections/reluctance to the ILC's ongoing work? Does India have objections to the very definition of CAH based on the Rome Statute or does it have concerns with the contextual elements of the crime?



A familiar pattern

In *State v. Sajjan Kumar*, the Delhi High Court also said that "a familiar pattern of mass killings" was seen "in Mumbai in 1993, in Gujarat in 2002, in Kandhamal, Odisha in 2008, and Muzaffargarh in Uttar Pradesh in 2017", where the criminals "have enjoyed political patronage and managed to evade prosecution".

India's missing voice at the ILC does not go well with its claim of respect for an international rule-based order. Turning a blind eye to the mass crimes taking place in its territory and shielding the perpetrators reflect poorly on India's status as a democracy. It would be advisable for India to show political will and constructively engage with the ILC, which would also, in the process, address the shortcomings in the domestic criminal justice system.

The writer is a senior research fellow at the Centre for International Legal Studies, Jawahar Education University, New Delhi

UPSC CSE – GS II

GS II ... International Relations

Important International institutions, agencies and fora- their structure, mandate.

DRAFT QUESTION

There is a case for separate legislation for Crimes Against Humanity (CAH) in India. Discuss.

OR

India is not a member of the International Criminal Court. Critically examine India's objections during the negotiations of the Rome Statute, which established ICC.

68 Crimes that India's statute books have failed to define

No law adequately deals with mass atrocities

Neither 'crimes against humanity' nor 'genocide' has been made part of India's criminal law, a lacuna that needs to be addressed urgently. This was the lament of Justice S. Muralidhar of the Delhi High Court, while pronouncing the judgment in *State v. Sajjan Kumar* (2018).

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Reasons for reluctance

The most probable reason for India's reluctance to actively participate in the negotiation process on a separate Convention on CAH, which started in 2014, could be the adoption of the same definition of CAH as provided in the Rome Statute. The Indian representatives at the International Law Commission (ILC) have stated that the draft articles should not conflict with or duplicate the existing treaty regimes.

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First, India was not in favour of using 'widespread or systematic' as one of the conditions, preferring 'widespread and systematic', which would require a higher threshold of proof.

Second, India wanted a distinction to be made between international and internal armed conflicts. This was probably because its internal conflicts with naxals and other non-state actors in places like Kashmir and the Northeast could fall under the scope of CAH.

The third objection related to the inclusion of enforced disappearance of persons under CAH. It is pertinent here that India has signed but not yet ratified the UN International Convention for the Protection of All Persons from Enforced Disappearances as it would put the country under an obligation to criminalise it through domestic legislation.

Can these objections be seen as providing the basis for India's objections/silence to the ILC's ongoing work? Does India have objections to the very definition of CAH based on the Rome Statute or does it have concerns with the contextual elements of the crime?

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India's missing voice at the ILC does not go well with its claim of respect for an international rules-based order. Turning a blind eye to the mass crimes taking place in its territory and shielding the perpetrators reflect poorly on India's status as a democracy. It would be advisable for India to show political will and constructively engage with the ILC, which would also, in the process, address the shortcomings in the domestic criminal justice system.



OBSERVATIONS OF DELHI HIGH COURT IN 2018



JUSTICE S.MURALIDHAR
Delhi High Court



Genocide means the murder of a whole group of people, especially a whole nation, race, or religious group.

- 1 Justice S. Muralidhar of the Delhi High Court, while pronouncing the judgment in State vs Sajjan Kumar in 2018 said “**Neither crimes against humanity nor genocide**” has been made part of India’s criminal law.
- 2 The case concerned is the mass killing of Sikhs during the anti-Sikh riots in 1984 in Delhi and throughout the country.
- 3 The Delhi High Court observed that these kind of mass crimes “engineered by political actors with the assistance of the law enforcement agencies” fits into the category of Crimes Against Humanity (CAH).

FURTHER INTO THE OBSERVATIONS OF DELHI HIGH COURT



- 1 In *State vs Sajjan Kumar*, the Delhi High Court said that a familiar pattern of mass killings was seen
 - In Mumbai in 1993,
 - In Gujarat in 2002,
 - In Kandhamal, Odisha in 2008, and
 - In Muzaffarnagar in Uttar Pradesh in 2013.

- 2 Here the criminals enjoyed political patronage and managed to evade prosecutions.

GLOBALLY, HOW ARE THEY DEALT WITH?



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1

Globally, Crimes Against Humanity are dealt with under the Rome Statute of the International Criminal Court.

2

They are defined as offences such as

- Murder
- Extermination (killing a group of people)
- Enslavement
- Deportation
- Torture
- Imprisonment and
- Rape

committed as a part of “widespread or systematic attack directed against any civilian population, with the knowledge of the attack”.



INTERNATIONAL CRIMINAL COURT (ICC)



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Criminal
Court

- International Criminal Court is an inter-governmental organization and international tribunal based in The Hague, Netherlands.
- It has got jurisdiction to prosecute individuals for the international crimes of genocide, crimes against humanity and war crimes.
- Established by Rome Statute and entered into force in July, 2002.
- India is not a member of ICC.
- At present there are around 122 States, which are party to Rome Statute.
- During its 17 years of existence, it is facing the accusations of bringing to book mainly African countries / nationals.
- Burundi and the Philippines have withdrawn during the past 2 years.

It takes up the cases, when National Courts are unwilling or unable to prosecute criminals or when the United Nations Security Council or Individual States refer situations to the Court.

CRIMES AGAINST HUMANITY

India is not a party to the Rome Statute, which means that it is under no obligation at present to enact a separate legislation dealing with Crimes Against Humanity.



**No Legislation for Crimes
Against Humanity**



GENOCIDE

Even after ratification of the Genocide Convention (1948), India has not enacted it in domestic legislation.



No Legislation for Genocide



INTERNATIONAL COURT OF JUSTICE (ICJ)



INTERNATIONAL COURT
OF JUSTICE

- *It is the primary judicial branch of the United Nations.*
- *Headquarters: Peace Palace in The Hague, Netherlands.*

1. It decides, in accordance with international law, disputes of a legal nature that are submitted to it by States (jurisdiction in contentious cases).
 - Article 94 establishes the duty of all UN members to comply with decisions of the Court involving them.
 - If parties do not comply, the issue may be taken before the Security Council for enforcement action.
2. It also gives advisory opinions on legal questions at the request of the organs of the United Nations, specialized agencies or one related organization authorized to make such a request (advisory jurisdiction).

INDIA IS NEITHER ACTIVELY PARTICIPATING IN TALKS FOR SEPARATE CONVENTION!



INTERNATIONAL LAW COMMISSION



- 1 Negotiation process on a separate Convention on CAH started in 2014.
- 2 But, India has shown reluctance to actively participate in the negotiation process on separate convention.
- 3 Indian representatives at the International Law Commission have stated that the draft articles should not conflict with or duplicate the existing treaty regimes.

WHAT DO YOU UNDERSTAND BY INTERNATIONAL LAW COMMISSION



INTERNATIONAL LAW COMMISSION



- The International Law Commission was established by the UN General Assembly in 1947.
- It is to undertake the mandate of the Assembly, under article 13 (1) (a) of the Charter of the United Nations to “initiate studies and make recommendations for the purpose of **encouraging the progressive development of international law and its codification**”.



WHY INDIA OBJECTED TO THE DEFINITION OF CAH DURING ROME STATUTE NEGOTIATIONS?

1

India was not in favour of using **widespread or systematic** as one of the conditions, preferring **widespread and systematic**, which would require a high threshold of proof.

2

- India wanted a **distinction to be made between international and internal armed conflicts**.
- This was probably because its internal conflicts **with naxals and other non-state actors in places like Kashmir and the Northeast** could fall under the scope of CAH.

3

- India's other objection related to the inclusion of **enforced disappearances of persons** under CAH.
- Enforced disappearance occurs when a person is **secretly abducted or imprisoned** by a state or political organization.
- It is pertinent that India signed, but not yet ratified the UN International Convention for the Protection of All Persons from Enforced Disappearances as it would put the country under the obligation to criminalise it through domestic legislation.



There is an urgent need to address the shortcomings in the domestic criminal justice system as neither crimes against humanity nor genocide has been made part of India's criminal law.

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SINCERE THANKS
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